1898

Executive Order

Relating to the Canal Zone Judiciary

By virtue of the authority vested in me, I hereby establish the following order for the Canal Zone:

Section 1. The Balboa Division of the District Court of the Canal Zone, in conformity with the Panama Canal Act, shall include all that part of the Canal Zone which lies within the lines of the ten mile zone and extends from the south bank of the Chagres River and the shore line of Gatun lake, 87 feet above mean sea level, to the Pacific Ocean; and the Cristobal Division of said Court shall include all of the territory within the lines of the ten mile zone, extending from the Balboa Division to the Atlantic Ocean, and the area of Gatun Lake beyond the lines of the ten mile zone up to the contour line of 100 feet above mean sea level and the islands in said lake; and the peninsulas bordering on said lake which have been taken by the United States for the purposes of the Panama Canal.

Section 2. Civil and criminal cases within the original and appellate jurisdiction of the District Court arising in the Division of Balboa shall be tried in the town of Balboa, and those arising in the Division of Cristobal shall be tried in the town of Cristobal. The Governor of the Panama Canal shall provide a suitable place in each of said towns for the holding of the sessions of the District Court.

Section 3. The Canal Zone is hereby divided into two sub-divisions to be known as the sub-division of Balboa and the sub-division of Cristobal. The territorial limits of the sub-division of Balboa shall be coterminous with those provided in this order for the Balboa division of the District Court and the territorial limits of the sub-division of Cristobal shall be coterminous with the Cristobal division of the District Court.

Section 4. The town of Balboa shall include the townsite at the Pacific terminus of the Canal of that name, as well as the other settlements within the Balboa sub-division; and the town of Cristobal shall include the townsite of that name, as well as all other settlements within the Cristobal sub-division of the Canal Zone.

Section 5. There shall be a magistrate and a constable for each of the towns of Balboa and Cristobal to be appointed by the Governor, in conformity with section 7 of the Panama Canal Act. The said magistrates shall hold court at such places in their respective towns as may be designated by the Governor of the Panama Canal from time to time.

Section 6. Appeals in civil and criminal cases are hereby authorized from the judgments and rulings of the Magistrate Courts to the District Court of the Canal Zone in like manner as appeals have been heretofore allowed from the District Courts of the Canal Zone to the Circuit Courts thereof.

Section 7. Magistrates and constables appointed for the Magistrates Courts, before assuming office, shall be required to subscribe an oath of

office before an officer of the Canal Zone authorized to administer the same, to the effect that they will faithfully and impartially discharge the duties of their respective offices; and the constables of said courts shall be required to execute a bond with two or more good and sufficient sureties, or by a bonding company, to be approved by the Governor, in the sum of One thousand dollars, conditioned that the officer executing said bond will faithfully comply with his duties as constable, and will turn over all moneys, properties and effects coming into his hands by virtue of his office to the persons entitled thereto in accordance with law; and the bond may be sued upon in any court of competent jurisdiction by any person who may be injured by reason of a failure of official duty on the part of the constable, and the bond shall not become void upon the first recovery, but successive suits may be instituted thereon until the full amount thereof is exhausted.

Section 8. The rules heretofore governing the District Courts of the Canal Zone and prescribing the duties of the District Judges there, and bailiffs, and those respecting the disposition of fines, costs, forfeitures and enforcement of judgments in said courts and providing for appeals therefrom to the Circuit Court, shall apply to the Magistrate Courts established by this order and to the Magistrates and Constables thereof.

Section 9. The District Judge in selecting jurors to render jury service in the district court, shall choose them from among those residing within the division in which they are called upon to serve as such jurors.

Section 10. The rules of evidence, practice and procedure heretofore established in the Circuit Courts of the Canal Zone, not inconsistent with the provisions of the Panama Canal Act, shall govern in the trial of cases in the District Court of the Canal Zone.

Section 11. The District Judge may order a change of venue in any case, civil or criminal, when in his opinion that is necessary to an orderly and due administration of justice, or when for any cause it is not practicable to hold a session in the Division where the case was originally instituted; and he may, at his discretion, order a change of venue in any case by consent of the parties. When a change of venue is ordered in any civil or criminal case, the Judge shall state his reasons therefor in the order directing the change of venue.

Section 12. Whenever a change of venue has been ordered by the Court, the clerk shall immediately make out a true transcript of all the orders made in said cause, and certify thereto under his official seal, and transmit the same with the original papers in the case to the other division of the District, and the case shall be tried therein as if it had been instituted there originally.

Section 13. The Supreme Court of the Canal Zone and the judges thereof shall continue to act after this order takes effect until the cases and business pending therein have been finally determined and disposed of; but cases tried in any of the Circuit Courts prior to April 1, 1914, shall not be heard in the Supreme Court unless the appeal is perfected and the case docketed in the Supreme Court before May 1, 1914.

Section 14. This order shall take effect from and after April 1, 1914.

WOODROW WILSON

THE WHITE HOUSE,
12 March, 1914.

[No. 1898.]